

26STCV13374 26STCV13374

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Case Number: 26STCV13374 Hearing Date: August 14, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 14, 2026

Case Name: Case v. MVE + Partners, Inc.,
et al.

Case No.: 26STCV13374

Matter: Motion to Compel Arbitration

Moving

Party: Defendants MVE +

Partners, Inc, Mark S. Kim, and David Arnold

Responding Party: Plaintiff Marianne Lunningham Case

Tentative

Ruling: Defendants MVE +

Partners, Inc, Mark S. Kim, and David Arnold's motion is granted.

Plaintiff

Marianne Lunningham Case ("Plaintiff") brought this action against Defendants MVE + Partners, Inc, Mark S. Kim, David Arnold (collectively "MVE"), and Does 1 through 20. The Complaint alleges 12 causes of action for: (1) discrimination on the basis of disability (FEHA); (2) discrimination on the basis of age (FEHA);

(3) retaliation for requesting reasonable accommodation (FEHA); (4) harassment on the basis of sex (FEHA); (5) harassment on the basis of disability (FEHA); (6) failure to provide reasonable accommodations (FEHA); (7) failure to engage in an interactive process (FEHA); (8) whistleblower retaliation per Labor Code section 1102.5; (9) FEHA retaliation; (10) failure to prevent discrimination; harassment and retaliation (FEHA); (11) failure to reimburse business expenses per Labor Code section 2802; and (12) wrongful termination in violation of public policy.

MVE

moves to compel arbitration of Plaintiff's claims pursuant to the arbitration agreement that Plaintiff signed when she signed her offer letter. Plaintiff opposes.

Legal Standard

Under both the Federal Arbitration Act and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (*Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.) Code of Civil Procedure section 1281.2 authorizes the court to order arbitration of a case if it finds the parties agreed to arbitrate that dispute, "and that a party to the agreement refuses to arbitrate that controversy." (Code Civ. Proc., § 1281.2, subd. (a).) Arbitration agreements should be liberally interpreted and ordered unless the agreement clearly does not apply to the dispute in question. (*Weeks v. Crow* (1980) 113 Cal.App.3d 350, 353; *Segal v. Silberstein* (2007) 156 Cal.App.4th 627, 633.)

The party

moving to compel arbitration has the initial burden to (1) affirmatively admit and allege the existence of a written arbitration agreement, and (2) prove the existence of that agreement by a preponderance of the evidence. (*Rosenthal v. Great W. Fin. Sec. Corp.*, 14 Cal. 4th 394, 413.) Once this is met, the burden shifts to the responding party to prove that the agreement is unenforceable by a preponderance of the evidence. (*Ibid.*)

"Doubts as

to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. The court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute.” (California Correctional Peace Officers Assn. v. State, (2006) 142 Cal.App.4th 198, 205.)

Analysis

MVE moves

to compel arbitration of Plaintiff’s claims against it and stay the matter pending arbitration.

Federal

Arbitration Agreement

MVE argues

the Federal Arbitration Act (FAA) governs the Arbitration Agreement (“Agreement”). The Court agrees. The Agreement expressly states, “[t]his Agreement is governed by and enforceable under the FAA, including the procedural provisions of the FAA.” (Kim Decl., Ex. D, p. 2.) Plaintiff does not dispute the applicability of the FAA.

Thus, the FAA applies to the Agreement.

Existence

of a Valid Agreement

MVE seeks

to compel arbitration based on a 2026 Agreement. In support of the existence of the Agreement, MVE submits as evidence the executed Agreement signed by Plaintiff on January 5, 2026. (Arnold Decl., ¶ 6, Ex. A.) The Agreement provides:

. . . any

controversy, claim or dispute between me and MVE + Partners, Inc. and/or any of its related entities, holding companies, parents, subsidiaries, divisions, officers, shareholders, directors, employees, agents, insurers, vendors, contractors, customers, predecessors, successors, and assigns (collectively,

"Company") that arises out of or relates to my prospective employment, employment, or the separation of my employment will be submitted to final and binding arbitration as the sole and exclusive remedy, regardless of whether the dispute is initiated by Company or me.

(Kim Decl., Ex. D, p. 1.)

Plaintiff does not dispute that she signed the agreement, nor did she submit any evidence to challenge the position that she did not sign the agreement. Plaintiff disputes that the Agreement does not apply to Plaintiff's claims because the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act ("EFAA") bars arbitration.

To establish the existence of an agreement to arbitrate, it is sufficient for the defendant to provide a copy of the arbitration agreement or state the paragraph verbatim. (Baker v. Italian Maple Holdings, LLC, 13 Cal.App.5th 1152, 1160 (2017); Cal. Rules of Court, Rule 3.1330.)

Thus, an Agreement exists between the parties.

Applicability of the Ending Forced Arbitration of Sexual Assault and Sexual Harassment

Act ("EFAA")

Plaintiff argues that the Agreement does not apply to Plaintiff's claims because her claims are barred from arbitration pursuant to the EFAA.

Under the EFAA, a plaintiff "alleging conduct constituting sexual harassment or a sexual assault dispute" may elect to render invalid and unenforceable an arbitration provision applicable to their case. (9 U.S.C. §402(a).) The EFAA specifically states "at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under

Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9 U.S.C. §402(a), emphasis added.) A sexual harassment dispute is defined as “relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law.” (9 U.S.C.A. § 401(4).)

“To prevail

on a harassment claim, an employee must show the harassment was “severe enough or sufficiently pervasive to alter the conditions of employment and create a work environment that qualifies as hostile or abusive to employees because of their sex.” (Quilala v. Securitas Security Services USA, Inc. (2025) 117 Cal.App.5th 75, 86 (Quilala).) FEHA makes it an unlawful employment practice for an employer to harass an employee because of the sex of that person. (Gov. Code, § 12940, subd. (j)(1).) “[S]imple teasing, offhand comments, and isolated incidents (unless extremely serious)” are not sufficient to create an actionable claim of harassment.” (Quilala, supra, 117 Cal.App.5th at p. 86.) “But an isolated incident can form the basis for an actionable claim if it is extremely serious.” (Ibid.)

“[S]imple teasing, offhand comments, and isolated incidents (unless extremely serious)” are not sufficient to create an actionable claim of harassment.” (Bailey v. San Francisco Dist. Attorney’s Office (2024) 16 Cal.5th 611, 628.) “As the United States Supreme Court has recognized, “[t]he prohibition of harassment on the basis of sex requires neither asexuality nor androgyny in the workplace; it forbids only behavior so objectively offensive as to alter the ‘conditions’ of the victim’s employment” and create a hostile or abusive work environment.” (Lyle v. Warner Brothers Television Productions (2006) 38 Cal.4th 264, 282–283.) “Therefore, to establish liability in a FEHA hostile work environment sexual harassment case, a plaintiff employee must show she was subjected to sexual advances, conduct, or comments that were severe enough or sufficiently pervasive to alter the conditions of her employment and create a hostile or abusive work environment.” (Id. at p. 283.)

“To

determine whether the EFAA covers a plaintiff’s claims, we first consider whether the allegations in the complaint sound in sexual harassment or sexual assault.” (Combs v. Netflix, Inc. (9th Cir. 2026) 180 F.4th 1201.)

The Court

finds that Plaintiff's allegations do not sound in sexual harassment or sexual assault. Additionally, the cases that Plaintiff relies on to support her claim that the allegations she has made are enough to trigger the EFAA exemption do not support her claim. In *Decloedt*, the Court held that harassment based on sexual orientation can constitute sexual harassment. (*Decloedt v. Radnet Management, Inc.* (2026) 121 Cal.App.5th 732, 737.) The Court reasoned that plaintiff had alleged that he experienced severe and pervasive harassment when another employee continuously harassed plaintiff and also exhibited aggressive behavior towards him, which led to invasive physical contact. (*Id.* at p. 746.) In *Quilala*, the Court determined that a plaintiff had made sufficient allegations to state a claim for sexual harassment based on his sexual identity. (*Quilala, supra*, 117 Cal.App.5th at p. 86.) The court reasoned that coworkers and supervisors repeatedly asked plaintiff sexually explicit questions and even removed him from work assignments. (*Ibid.*) In *Sharp*, the court addressed an employer's routine practice of allowing sexually graphic, violent, and misogynistic music to be played throughout a 700,000 square foot warehouse. (*Sharp v. Activewear, L.L.C.* (9th Cir. 2023) 69 F.4th 974, 977.)

The only cause of action related to sexual harassment is the fourth cause of action. The Complaint alleges that "on a date during her employment" a group of management personnel "gathered in or near a large open conference room located approximately twenty-five feet from [Plaintiff]," and she could hear them watching pornography. (Compl., ¶ 41.) Plaintiff further alleges that she also heard "explicit audio of sexual acts and graphic verbal commentary by MVE male employees regarding a male performer's body and sexual conduct." (*Id.* at ¶¶ 41-42.) Taking the allegations as true, and if true, the Court warrants that this behavior is distasteful; however, this one-time occurrence does not sound in sexual harassment. Additionally, Plaintiff's allegations are unlike *Decloedt*, *Quilala*, and *Sharp*, where the conduct was severe and pervasive, but also directed at the plaintiffs.

Thus, the Court finds that the EFAA exemption does not apply. Plaintiff's claims are subject to arbitration. Plaintiff does not argue that the Agreement is unconscionable; thus, this is the end of the Court's analysis regarding enforcement of the Agreement.

Stay of

Proceedings

Code of

Civil Procedure section 1281.4 provides that if the court has ordered the arbitration of a controversy, it “shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.”² (Code Civ. Proc., § 1281.4.)

²

Thus, the Court

stays this action pending the conclusion of the arbitration proceedings.²²

Conclusion

MVE's

motion to compel arbitration is granted. The Court stays this action pending the conclusion of the arbitration process.